

21STCV41026 21STCV41026

County: los-angeles

Division: Civil Law and Motion

Department: F46

Hearing date: 2026-06-23

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PLAINTIFFS' MOTION FOR SANCTIONS AND/OR EVIDENTIARY RELIEF RE DEFENSE EXPERTS JASON ARST AND DANIEL VOSS

Motion filed on April 29, 2026.

MOVING PARTY: Plaintiffs Kimberly Gallegos and Alex Gallegos.

RESPONDING PARTY: Defendants Consolidated Disposal Service, LLC and Logan Jose Lizares.

NOTICE: OK.

RELIEF REQUESTED: Plaintiffs seek evidentiary sanctions and related relief concerning defense experts Jason Arst and Daniel Voss.

RULING: Denied.

BACKGROUND

On April 29, 2026, Plaintiffs filed an ex parte application seeking to specially set an OSC regarding evidentiary sanctions against defense experts Jason Arst and Daniel Voss. On April 30, 2026, the Court denied ex parte relief but treated the application as a noticed discovery motion for sanctions and/or evidentiary relief. Defendants filed an opposition on May 20, 2026. Plaintiffs filed a reply on May 27, 2026. Defendants filed supplemental declarations on May 28, 2026 and June 2, 2026. On June 3, 2026, the Court continued the sanctions motion, ordered Defendants to produce Arst for a full-day deposition on June 5, 2026, and permitted limited supplemental briefing. On June 4, 2026, the Court denied Defendants' ex parte application for a protective order and left the June 3, 2026 order in effect. Plaintiffs and Defendants filed supplemental briefs on June 18, 2026.

DISCUSSION

Code of Civil Procedure section 2023.010, subdivision (g) defines misuse of the discovery process to include disobeying a court order to provide discovery. Section 2023.030 authorizes monetary sanctions and evidence sanctions for misuse of the discovery process. (Code Civ. Proc., § 2023.030, subds. (a), (c).) In expert discovery, a noticed expert must produce

demanded materials no later than three business days before the deposition. (Code Civ. Proc., § 2034.415.) The Court may exclude expert opinion testimony when a party unreasonably fails to produce discoverable expert reports and writings or unreasonably fails to make the expert available for deposition. (Code Civ. Proc., § 2034.300, subds. (c), (d).)

The “reasonableness” inquiry asks whether the conduct compromises the purposes of the expert discovery statutes, including “to assist the parties and the trier of fact in ascertaining the truth; to encourage settlement by educating the parties as to the strengths of their claims and defenses; to expedite and facilitate preparation and trial; to prevent delay; and to safeguard against surprise.” (Id. at p. 1447; *Boston v. Penny Lane Centers, Inc.* (2009) 170 Cal.App.4th 936, 950; *Stanchfield v. Hamer Toyota, Inc.* (1995) 37 Cal.App.4th 1495, 1504.) The Court has discretion to overlook excusable delays and trivial defects. (*Boston*, supra, 170 Cal.App.4th at p. 952.) Discovery sanctions “must be tailored in order to remedy the offending party’s discovery abuse, should not give the aggrieved party more than what it is entitled to, and should not be used to punish the offending party.” (*Karlsson v. Ford Motor Co.* (2006) 140 Cal.App.4th 1202, 1217.)

Here, the Court’s April 8, 2026 order reopened expert discovery only for the limited purpose of completing the depositions of experts Arst and Voss. The order required Defendants to reproduce the materials demanded in those deposition notices in a reasonably accessible form, including usable renditions of raw or native data files, no later than seven business days before each rescheduled deposition. The order also required both depositions to be completed no later than 30 calendar days from the date of the order. (4/8/26 Minute Order, p. 6.) Defendants did not meet the business-day production deadlines. Stream states he mistakenly read the production deadlines as calendar-day deadlines, relied on the order’s reference to Defendants’ agreement to provide file materials “one week in advance,” and instructed Arst to have his file ready on April 29, 2026 and Voss to have his file ready on April 30, 2026. (Stream Decl. ¶¶ 3-5.) Defendants then reproduced Voss’s file on April 29, 2026 at 2:03 p.m. and produced Arst’s file on April 29, 2026 at 4:08 p.m. (Stream Decl. ¶¶ 8-9.)

The depositions also were not completed within the 30 calendar days required by the April 8, 2026 order. The Court addressed that noncompliance on June 3, 2026 by continuing the sanctions hearing, ordering Defendants to produce Arst for a full-day deposition on June 5, 2026, and reserving the sanctions issues. (6/3/26 Minute Order, pp. 6-7.) On June 4, 2026, the Court denied Defendants’ ex parte application for a protective order limiting the Arst deposition and left the June 3, 2026 order in effect. (6/4/26 Minute Order, pp. 2-3.)

The remaining issue is whether further sanctions are warranted after those remedial orders. Defendants state that Voss’s deposition began on May 29, 2026 and was completed on May 30, 2026 after approximately 14 hours. (Defendants’ Supplemental Brief, p. 1.) Defendants also state that Arst’s deposition was completed on June 5, 2026 after approximately 8 hours. (*Ibid.*) In their supplemental brief, Plaintiffs request that the Court strike experts Arst and Voss, exclude all opinions and expert materials dated after or derived from work performed after February 18, 2026, order Voss to produce his Rule 26 testimony list and reconstruction calculations within two court days or be precluded from testifying, and impose monetary sanctions.

The Court declines to impose further sanctions. Defendants’ prior noncompliance warranted remedial orders to complete the depositions. Those depositions have now been completed. Striking Voss and Arst, or categorically excluding broad classes of expert opinions and materials, would exceed what is necessary to address the discovery misuse shown on the present record. Plaintiffs also have not submitted a supported amount of fees or costs for the Court to evaluate as a monetary sanction. The motion is denied.

CONCLUSION

Plaintiffs’ motion for sanctions and/or evidentiary relief re defense experts Jason Arst and Daniel Voss is denied.

DEPT. F-46

Hearing

Date: June 23, 2026

Case

Number: 212STCV4`026

CONSOLIDATED

DISPOSAL SERVICE, LLC AND LOGAN LIZARES' MOTION TO COMPEL PRODUCTION OF EXPERT

FILE MATERIALS OR, IN THE ALTERNATIVE, EXCLUDE TESTIMONY OF PLAINTIFFS' EXPERT,

PERRY PONDER

Motion

filed April 2, 2026.

MOVING

PARTY: Defendants Defendants Consolidated Disposal Service, LLC and Logan

Jose Lizares

RESPONDING

PARTY: Plaintiffs Kimberly Gallegos and Alex Gallegos

NOTICE:

OK.

RELIEF

REQUESTED

Defendants

move to compel production of expert file materials for Plaintiffs' expert Perry

Ponder or, in the alternative, to exclude his testimony.

RULING

Denied.

BACKGROUND

Defendants Consolidated Disposal Services and Logan Jose

Lizares filed this motion on April 2, 2026, supported by the declaration of Theodore

Stream and exhibits. Plaintiffs filed an opposition on June 9, 2026, supported

by the declaration of Katherine Harvey-Lee and exhibits. Defendants filed a

reply on June 15, 2026, supported by the declaration of Brian Coolidge.

Defendants filed a notice of errata on June 16, 2026.

DISCUSSION

The expert witness discovery statutes are intended to

provide parties with fair notice of the substance of expert testimony so that

the opposing party may prepare for meaningful cross-examination and marshal

rebuttal evidence. (Bonds v. Roy (1999) 20 Cal.4th 140, 146-147; Boston

v. Penny Lane Centers, Inc. (2009) 170 Cal.App.4th 936, 950-951.)

Code of Civil Procedure section 2034.210, subdivision (c),

permits a party demanding the exchange of expert witness information to

simultaneously demand production of all discoverable reports and writings

prepared by designated experts. If such a demand is made, all parties must

produce all discoverable reports and writings on the exchange date. (Code Civ. Proc., § 2034.270.)

Code of Civil Procedure section 2034.300 provides that, upon objection by a party who has made complete and timely compliance with section 2034.260, the Court shall exclude expert opinion testimony offered by a party who has unreasonably failed to produce expert reports or writings required by section 2034.270.

Expert discovery is governed by the statutory discovery deadlines. (Code Civ. Proc., § 2024.030.) A continuance of trial does not reopen discovery. (Code Civ. Proc., § 2024.020, subd. (b).) Discovery may thereafter be reopened only upon noticed motion and a showing of good cause. (Code Civ. Proc., § 2024.050.)

Here, Defendants served an amended demand for exchange of expert witness information and reports on May 12, 2025. The demand requested production of "all discoverable reports and writings, if any, made by each expert listed in the course of preparing that expert's opinion," with an exchange date of June 16, 2025. (Stream Decl. ¶ 2, Ex. A.)

Plaintiffs noticed the depositions of their retained experts in November 2025 without accompanying document requests. Plaintiffs had previously invited the parties to cross-notice expert depositions. (Harvey-Lee

Decl. ¶¶ 1-3, Exhs. 1-2.) Defendants did not cross-notice Mr. Ponders deposition, did not serve a deposition notice requesting production of documents, and did not object to the manner in which the deposition was noticed. (Plf. Harvey-Lee Decl. ¶¶ 7-10.)

Mr. Ponder was deposed on January 30, 2026. Defendants attended and cross-examined him. During the deposition, Mr. Ponder testified concerning calculations involving acceleration, closing speed, and accident reconstruction issues. (Stream Decl. ¶ 4, Ex. C.)

On February 5, 2026, Plaintiffs' counsel advised that Plaintiffs would comply with outstanding discovery obligations, including production of responsive expert materials. (Stream Decl. ¶ 3, Ex. B.) On February 9, 2026, Plaintiffs produced documents from Mr. Ponder's file that Plaintiffs believed might be offered into evidence at trial in response to supplemental discovery propounded by MFG. (Harvey-Lee Decl. ¶ 11.)

On February 19, 2026, Defendants specifically requested production of Mr. Ponder's calculations. (Def. Counsel TS Decl. ¶ 3, Ex. B.) Expert discovery closed on February 23, 2026.

By minute order dated February 24, 2026, the Court continued trial to July 27, 2026, but expressly ordered that all discovery, including expert discovery, remained closed as of February 23, 2026, absent a noticed

motion demonstrating good cause to reopen discovery. (2/24/26 Minute Order at pp. 4-5.)

The Court thereafter reopened expert discovery only for the limited purpose of completing the depositions of Defendants' experts Jason Arst and Daniel Voss. (4/8/26 Minute Order at p. 5.) The Court expressly stated that no other expert discovery was reopened. That limitation remained in effect by the Court's June 3, 2026 order. (6/3/26 Minute Order at p. 7.)

Defendants filed this motion on April 2, 2026.

On May 12, 2026, Plaintiffs produced Mr. Ponder's calculations in response to Defendants' February 19, 2026 request. (Harvey-Lee Decl. ¶ 12; Coolidge Decl. ¶ 2.)

Defendants thereafter requested confirmation that the calculations and trial exhibits constituted Mr. Ponder's complete file.

(Coolidge Decl. ¶¶ 3-5.) Plaintiffs did not provide that confirmation.

(Coolidge Decl. ¶¶ 6-7.)

To the extent Defendants seek an order compelling additional production or requiring Plaintiffs to provide a verified certification that no additional expert materials exist, the motion is denied.

The record demonstrates that Defendants were aware of the alleged production deficiency before expert discovery closed. Mr. Ponder testified

concerning the calculations during his January 30, 2026 deposition, and Defendants specifically requested those calculations on February 19, 2026, four days before expert discovery closed. Nevertheless, Defendants did not seek judicial relief before the discovery cutoff, did not seek an order shortening time, and did not move to reopen expert discovery pursuant to Code of Civil Procedure section 2024.050. Nor have Defendants offered an adequate explanation why such relief could not have been sought while discovery remained open.

Moreover, the specific calculations identified in the motion were ultimately produced on May 12, 2026. Although Defendants now seek confirmation that no additional materials exist, they identify no specific existing report, worksheet, calculation, or other writing that remains unproduced. The present motion therefore seeks relief extending beyond the specific production issue identified before the expert discovery cutoff.

The Court likewise declines to exclude Plaintiffs' expert testimony pursuant to Code of Civil Procedure section 2034.300.

Section 2034.300 authorizes the exclusion of expert opinion only where its statutory prerequisites have been established. On the present record, Defendants have not demonstrated an unreasonable failure to produce discoverable expert writings warranting the extraordinary sanction of excluding otherwise relevant expert testimony.

Although Defendants contend the calculations should have been produced earlier, Plaintiffs produced materials from the expert's file on February 9, 2026, and produced the requested calculations on May 12, 2026, before trial, before the deposition of Defendants' accident reconstruction expert, and before hearing of this motion. Defendants have not demonstrated that the timing of production has materially impaired their ability to prepare for trial, cross-examine Plaintiffs' expert, or present rebuttal expert testimony. Under these circumstances, exclusion would be a disproportionate remedy.

The Court further observes that trial courts have a substantial interest in enforcing discovery deadlines and orderly pretrial procedures. Permitting parties to defer discovery disputes until the eve of trial, or to repackage those disputes as pretrial evidentiary motions, undermines those objectives and is generally disfavored absent compelling circumstances. Discovery disputes should ordinarily be addressed during the discovery process when meaningful relief remains available to the Court.

CONCLUSION

The motion to compel production of expert file materials, or alternatively to exclude the testimony of Plaintiffs' expert Perry Ponder, is

DENIED.

This ruling is without prejudice to any proper evidentiary

objection that may arise during trial based upon the evidence actually offered.

However, nothing in this ruling should be construed as authorizing a party to

relitigate discovery disputes through a motion in limine where those disputes

reasonably could have been raised and resolved before the applicable discovery

cutoff. The Court will consider evidentiary objections based upon the trial

record as it develops and in accordance with the Evidence Code and applicable

statutory authority.